

M/s Sumiti Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 September 2022 · Writ - C No. 49651 of 2009 · **Writ dismissed as infructuous; interim vacated**

HEADNOTE

Writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 dismissed as infructuous on the petitioner's statement; any interim order vacated. No adjudication of the security demand.

FACTUAL SUMMARY

M/s Sumiti Alloys Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand notice dated 5 February 2009 seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 16 September 2009 a Division Bench listed the writ with similar 2009 matters and, following an interim order in W.P. No. 30582 of 2009 (Vehlina Steels), restrained further demand of additional security. On 21 January 2010 the case was released from the bunch. Counsel later stated the petition had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

Writ petition challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 dismissed as infructuous on the petitioner's statement; any interim order stands vacated. The legality of the security demand is not decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS LAWFULLY DEMANDED

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TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009			1	Referred